

# An Act

ENROLLED HOUSE  
BILL NO. 4298

By: Schreiber, Pae, and Stewart  
of the House

and

Rosino and Reinhardt of the  
Senate

An Act relating to child care; amending 10 O.S. 2021, Section 405.4, which relates to master teachers; directing establishment of certain master teacher ratios; authorizing child care facilities to charge certain fees subject to specified conditions; requiring the Department of Human Services to seek certain federal approval; providing for codification; providing an effective date; and declaring an emergency.

SUBJECT: Child care

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 405.4, is amended to read as follows:

Section 405.4. A. Any person with a bachelor's degree or postgraduate degree shall be considered as having met the educational requirements for a director of a full-time child care center required by the Department of Human Services. Nothing in this section shall be construed as to affect annual continuing education requirements. The director of a child care center may also qualify as a master teacher for children of all ages.

B. Any person replacing a master teacher at a child care center shall be granted a one-year probationary period to fulfill the educational qualifications required by the Department for a master teacher. The Department may extend the probationary period an

additional year as long as the person is actively pursuing that goal.

C. Not later than the effective date of this act, the Director of the Department of Human Services shall establish master teacher ratios for two-, three-, four-, and five-star child care facilities that are the most permissive ratios possible without harming the safety of children or the quality of care provided, as determined by the Director.

D. Licensed child care facilities opened or expanded before November 1, 2016, shall have thirty-five (35) square feet of floor area per infant in rooms occupied only by infants. New construction and existing space not previously licensed for child care after November 1, 2016, shall have forty (40) square feet of floor area per infant in rooms occupied only by infants.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 410.2 of Title 10, unless there is created a duplication in numbering, reads as follows:

A. Subject to federal approval as described in subsection B of this section, a licensed child care facility that participates in the child care subsidy program may charge a family receiving subsidy assistance an additional differential fee above the subsidy reimbursement rate established by the Department of Human Services, provided the total amount paid by the family for the required copayment and the additional differential fee does not exceed ten percent (10%) of household income. The Department shall not be responsible for payment of any amount charged above the applicable subsidy reimbursement rate.

B. The Department shall seek any approval necessary from the federal Administration for Children and Families to implement the provisions of this section.

SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 6th day of May, 2026.

\_\_\_\_\_  
Presiding Officer of the House  
of Representatives

Passed the Senate the 4th day of May, 2026.

\_\_\_\_\_  
Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

By: \_\_\_\_\_

Approved by the Governor of the State of Oklahoma this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

By: \_\_\_\_\_